

Pg. 17, Ln. 28- Pg. 18, Ln.1-3: “Exemplary and punitive damages in an amount appropriate to punish Defendant MELODY ANN SERAT, and DOES 1 through 100, Inclusive, and to deter others from engaging in similar wrongful conduct in an amount to be shown according to proof....”

Deny as to remaining portions of the FAC referenced in the notice of motion.

Grant with 30 days leave to amend.

No facts have been alleged to indicate that Defendant acted with malice, oppression, or fraud. Because it is not alleged that Defendant acted with an intent to injure Plaintiffs, the ultimate facts demonstrating a despicable conduct, which requires more than a willful and conscious disregard, need to be alleged. Here, Defendant is alleged to have been driving while intoxicated under the influence of alcohol or drugs. As noted by the Supreme Court in *Taylor v. Superior Court*, *supra*, 24 Cal.3d at 900, driving a vehicle while intoxicated is not itself a basis for a finding of conscious disregard of safety. Rather, the pleading must be supported by allegations constituting malice within the meaning of section 3294. Here, the FAC alleges that the despicable conduct constituting malice is that Defendant, aftermath of the accident, attempted to conceal evidence and to deny being involved in the accident. (FAC, ¶ 10.) However, no matter how despicable the conduct may be, it is irrelevant to Plaintiffs’ claim for negligence as events which occurred after the accident is not what is alleged to have caused Plaintiffs’ injuries. Plaintiffs also allege a long list of the Vehicle Code provisions which have been violated by Defendant. However, mere conclusory allegations that Defendant violated the law does not supply the facts supporting the claim for punitive damage. Therefore, the improper allegations related to Plaintiffs’ claim for punitive damages are subject to be stricken.

3.

CASE #	CASE NAME	HEARING NAME
CVSW2108099	SANTOS V. VELOCITY	OSC RE: CONSOLIDATION

Tentative Ruling: Consolidate the case ending in 8159 into this matter, ending in 0899 (With a *jury* trial set on February 5, 2027—no opposition was filed. Case CVSW2108099 is deemed the leading case.

4.

CASE #	CASE NAME	HEARING NAME
CVME2608159	PELAYO VS STIRLING	MOTION FOR LEAVE TO FILE SECOND AMENDED CROSS-COMPLAINT

Tentative Ruling: Deny—no Proof of Service.

5.

CASE #	CASE NAME	HEARING NAME
CVME2510845	ALLEN V. TARPLEY	CMC AND OSC

Tentative Ruling: Continue the CMC and OSC to April 1, 2027. Sanction Plaintiff \$500.00, on the OSC for failing to file the POS and/or file a LR 3116 declaration.